

S	E	R	V	E	D
September 28, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-08

**CARLSTAR GROUP LLC f/k/a CARLISLE TRANSPORTATION PRODUCTS, INC.
and CTP TRANSPORTATION PRODUCTS, LLC**

v.

UTi, UNITED STATES, INC.; UTi UNITED STATES, LLC; and DSV AIR & SEA, INC.

ORDER STAYING PROCEEDING FOR LIMITED TIME

On September 5, 2017, the Commission issued a Notice of Filing of Complaint and Assignment (Notice) for this proceeding. The Commission assigned the proceeding to the Office of Administrative Law Judges with instructions to issue an initial decision by September 5, 2018. *Carlstar Group LLC f/k/a Carlisle Transportation Products, Inc. and CTP Transportation Products, LLC v. UTi, United States, Inc.; UTi United States, LLC; and DSV Air & Sea, Inc.*, FMC No. 17-08 (FMC Sept. 5, 2017) (Notice of Filing of Complaint and Assignment). Pursuant to Commission Rule, Respondents' answers are due on October 2, 2017. 46 C.F.R. § 502.62(b)(1).

On September 28, 2017, the parties filed a Joint Motion to Stay Proceeding. The parties state that they have agreed to pursue mediation with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) and state they have reason to believe that this matter will be settled through mediation. Therefore, they request a stay to concentrate their efforts on mediation and conserve the resources of the Commission and the parties.

The parties did not suggest an end date for the stay. To assure a prompt resolution, the Commission has established an initial decision due date. Accordingly, a stay for an indefinite period is not warranted. Upon consideration of the motion, and good cause having been stated for a stay, it is hereby

ORDERED that this proceeding be stayed until October 26, 2017, to give the parties an opportunity to engage in mediation with CADRS. If the parties reach a settlement, they are instructed to file the settlement and a motion to approve the settlement as set forth in 46 C.F.R. § 502.72(a)(3) on or before November 2, 2017. If the parties do not settle by October 26, 2017, Respondents must answer or otherwise respond to the Complaint on or before November 2, 2017.



Clay G. Guthridge
Administrative Law Judge